policy statements must be "consistent with" the governing statute, 28 U. S. C. § 994(a), and courts have a duty to "independently interpret the statute and effectuate the will of Congress," 603 U. S., at 395. We are not bound to follow the Commission's guidance when it "exceed[s its] statutory authority" by adopting a definition of a term that is inconsistent with the statute. *Batterton* v. *Francis*, 432 U. S. 416, 426 (1977). Put differently, the Commission's interpretation must land within the statutory goalposts, no matter how wide they might be. Cf. *Koons* v. *United States*, 584 U. S. 700, 707 (2018) ("[P]olicy statements cannot make a defendant eligible when [the statute] makes him ineligible").

We need not nail down the precise boundaries of the phrase "extraordinary and compelling" to conclude that "with regard to the particular dispute in [this] case," the statute's language "has a plain and unambiguous meaning." *Robinson* v. *Shell Oil Co.*, 519 U. S. 337, 340 (1997). The statutory text and structure make clear that Congress's nonretroactive change to § 924(c)—considered by itself or in combination with other factors—cannot make a prisoner eligible for compassionate release. To the extent that it counsels otherwise, the Commission's policy statement is invalid.

Page Proof Pending Publication

* * *

Compassionate release is available only when a court finds that "extraordinary and compelling reasons warrant" a sentence reduction. 18 U. S. C. § 3582(c)(1)(A)(i). The disparity that results from Congress's decision to leave a sentence untouched cannot serve as one of those reasons. The judgments of the Third Circuit are affirmed.

It is so ordered.

JUSTICE SOTOMAYOR, with whom JUSTICE KAGAN and JUSTICE JACKSON join, dissenting.

Congress directed the United States Sentencing Commission, not this Court, to define what constitutes "extraordi-

nary and compelling reasons" for incarcerated individuals to receive a sentence reduction under the compassionate-release statute. In 2023, the Commission exercised its statutory authority and issued a policy statement that permitted district courts to consider sentencing disparities created by changes in law. Such disparities, the Commission specified, should be considered rarely and only as part of an inquiry into whether the totality of the circumstances warrant a reduction in a person's sentence.

Properly framed, the question presented by these cases is whether the Commission acted unreasonably when it issued that guidance. It did not. The Commission's policy statement is consistent with Congress's commands and centuries of legal practice in which courts look to the totality of the circumstances when deciding whether to modify a sentence. Because the Court concludes that the policy is unlawful, and that courts may never consider nonretroactive changes in law when deciding whether someone is eligible for compassionate release, I respectfully dissent.

Page Proof Pending Publication

I

A

In 2003, when he was 25 years old, petitioner Daniel Rutherford committed two armed robberies in which no one was hurt and during which he took a watch and roughly $1,300 worth of other jewelry and cash. He was convicted of two violations of 18 U. S. C. § 924(c)(1). At the time, those violations together carried a mandatory minimum sentence of 32 years, to run consecutive to his sentence for the robberies. In total, Rutherford was sentenced to 42.5 years in prison. As two judges noted in Rutherford's direct appeal of his conviction, that sentence "would be unthinkable in many state systems." 236 Fed. Appx. 835, 845 (CA3 2007) (Ambro, J., joined by McKee, J., concurring).

In 2007, petitioner Johnnie Markel Carter and others robbed several banks and stole about $250,000. As with

Rutherford's robberies, no one fired a gun and no one was hurt. Carter, who opted to go to trial, was convicted of three violations of § 924(c) and later sentenced to a term of 70 years in prison, 57 of which were from mandatory minimums for the § 924(c) violations. (Carter's co-conspirators, by contrast, took plea deals and received sentences ranging from 10 to 23 years.) For Carter, who was 29 years old at the time, the 70-year sentence was a *de facto* life sentence.

In the two decades since their convictions, both Rutherford and Carter have turned their lives around. Rutherford has completed over 50 educational courses and received only two minor infractions in the past decade. He also secured a job for after he is released, which would enable him to help support his deceased sister's five children.

Carter has, as the District Court put it, "become the kind of model prisoner that our system tries, but too often fails, to produce." 711 F. Supp. 3d 428, 440 (ED Pa. 2024) (case below). While in prison, Carter obtained a GED, completed vocational training programs, took parenting classes to improve his relationship with his adult children, maintained a perfect disciplinary record for the last eight years, and provided counseling and spiritual guidance to his fellow inmates.

Page Proof Pending Publication

B

In 2018, Congress passed the First Step Act and greatly reduced the mandatory minimum for first-time § 924(c) offenders like Rutherford and Carter. Had the amendments been in effect when Rutherford was sentenced, he would have faced a 14-year mandatory minimum, less than half of the 32-year mandatory minimum he received. Carter would have been subject to a 21-year mandatory minimum, 36 years shorter than the 57-year mandatory minimum he received. Because Congress did not make its changes retroactive, Rutherford and Carter were not automatically eligible for sentence reductions based on those changes.

In the wake of the First Step Act, the United States Sentencing Commission in 2023 adopted § 1B1.13(b)(6), a policy statement allowing courts, in limited circumstances, to consider sentencing disparities created by nonretroactive changes in law. Specifically, courts may grant relief based on such a change in law only when four requirements are met: (1) the defendant received an "unusually long sentence"; (2) the defendant has served at least 10 years of that sentence; (3) the disparity is "gross"; and (4) the district court has taken "full consideration of the defendant's individualized circumstances." USSG § 1B1.13(b)(6) (Nov. 2025). Outside of those circumstances, "a change in the law . . . shall not be considered" for purposes of determining whether an "extraordinary and compelling reason exists" to reduce the sentence. § 1B1.13(c).

Invoking this policy statement, Rutherford and Carter moved for compassionate release under 18 U. S. C. § 3582(c)(1)(A), which allows a district court to reduce an individual's term of imprisonment "if it finds that" "extraordinary and compelling reasons warrant such a reduction" "after considering the factors set forth in section 3553(a) to the extent they are applicable." Rutherford and Carter argued that there are extraordinary and compelling reasons to reduce their sentences based on a combination of their remarkable personal circumstances as well as the fact that they would have received much shorter sentences under today's law. The District Courts, however, held that the Commission's policy statement is invalid and denied petitioners relief, and the Court of Appeals affirmed.

Page Proof Pending Publication

II

The question now before the Court is whether the Commission permissibly exercised its delegated authority to permit courts to consider sentencing disparities created by nonretroactive changes in law, among other factors, in deciding compassionate release motions. Answering that question

properly begins with Congress's express delegation of authority to "[t]he Commission" to define, in the first instance, "what should be considered extraordinary and compelling reasons for sentence reduction, including the criteria to be applied and a list of specific examples" through the "promulgati[on]" of "policy statements." 28 U. S. C. § 994(t). This provision could hardly be clearer that the Commission has primary say over what qualifies as "extraordinary and compelling reasons for sentence reduction." *Ibid.*

A

Before 1984, federal judges had broad discretion when sentencing defendants. Statutes provided minimums and maximums for judges to work between, but within those ranges, judges could determine for themselves what sentence was appropriate. See *Mistretta* v. *United States*, 488 U. S. 361, 363–366 (1989). This system allowed judges to consider individual defendants' circumstances, but it also led to "[s]erious disparities in sentences." *Id.*, at 365.

Page Proof Pending Publication

To address those disparities, Congress passed the Sentencing Reform Act of 1984. The Act created the United States Sentencing Commission, which Congress tasked with studying federal sentencing and promulgating the Sentencing Guidelines. 28 U. S. C. § 994(a). The Guidelines instruct judges on how to sentence defendants, including how to account for different factual circumstances like the defendant's background, the seriousness of the defendant's conduct, and more, within the context of the considerations set forth in 18 U. S. C. § 3553(a). See 28 U. S. C. §§ 991(b), 994(f), 994(m).[1]

Congress gave the Commission an important policymaking role in the compassionate-release context as well. Under

[1] Although this Court later held that the Guidelines are not mandatory, see *United States* v. *Booker*, 543 U. S. 220, 245–246 (2005), they remain an important part of federal sentencing, and district courts must "begin all sentencing proceedings by correctly calculating the applicable Guidelines range," *Gall* v. *United States*, 552 U. S. 38, 49 (2007).

the statute, district courts can grant compassionate release and reduce a defendant's sentence if they find that there are "extraordinary and compelling reasons" for doing so. 18 U. S. C. §3582(c)(1)(A)(i). Congress neither specified what constitutes "extraordinary and compelling reasons" for relief nor told district courts how to determine if such reasons exist. It entrusted the Commission with those responsibilities instead, instructing district courts that any grant of relief must be "consistent with applicable policy statements issued by the Sentencing Commission." §3582(c)(1)(A).

Congress tasked the Commission with issuing "general policy statements regarding . . . the appropriate use of" compassionate release. 28 U. S. C. §994(a)(2)(C). Congress also required the Commission to "describe what should be considered extraordinary and compelling reasons for sentence reduction, including the criteria to be applied and a list of specific examples." §994(t). The only limit Congress imposed was that "[r]ehabilitation of the defendant alone shall not be considered an extraordinary and compelling reason." *Ibid.*

Page Proof Pending Publication

B

Congress's express delegation of authority to the Commission limits this Court's role in these cases. Congress often "authorize[s]" agencies "to exercise a degree of discretion." *Loper Bright Enterprises* v. *Raimondo*, 603 U. S. 369, 394 (2024). "For example, some statutes 'expressly delegat[e]' to an agency the authority to give meaning to a particular statutory term." *Ibid.* (quoting *Batterton* v. *Francis*, 432 U. S. 416, 425 (1977); emphasis deleted). "Others empower an agency to prescribe rules to 'fill up the details' of a statutory scheme." 603 U. S., at 395 (quoting *Wayman* v. *Southard*, 10 Wheat. 1, 43 (1825)). Others still authorize agencies to "regulate subject to the limits imposed by a term or phrase that 'leaves agencies with flexibility,' . . . such as 'appropriate' or 'reasonable.' " 603 U. S., at 395.

The Sentencing Reform Act does all those things. It instructs the Commission to issue guidance on the "appropriate use of" compassionate release. § 994(a)(2)(C). It also directs the Commission to give meaning to statutory terms and fill up the details of the statutory scheme by "describ[ing] what should be considered extraordinary and compelling reasons for sentence reduction," identifying "the criteria to be applied," and providing "a list of specific examples." § 994(t).

When a statute expressly delegates authority to an agency in this way, "[a] reviewing court is not free to set aside" the agency's actions "simply because it would have interpreted the statute in a different manner." *Batterton*, 432 U. S., at 425 (citing *American Telephone & Telegraph Co.* v. *United States*, 299 U. S. 232, 235–237 (1936)). Instead, the Court must determine " 'the boundaries of [the agency's] delegated authority' " and "ensur[e] the agency has engaged in 'reasoned decisionmaking' within those boundaries." *Loper Bright*, 603 U. S., at 395.

Page Proof Pending Publication

In short, under the statutory scheme that Congress created, the Commission has the leading role of defining the words "extraordinary and compelling" and thus setting the scope of compassionate release. This Court, by contrast, has the more modest role of ensuring that the Commission does not act unreasonably.

III

With that division of labor in mind, the Court should have upheld the Commission's policy statement because the Commission acted reasonably when it construed the terms "extraordinary and compelling" to permit courts to consider sentencing disparities caused by changes in law only in narrow circumstances and only as part of a holistic inquiry. The Commission's policy statement falls well within the expansive scope of the terms "extraordinary" and "compelling" and is consistent with longstanding judicial practices, which Congress did not alter here.

A

Start with the terms "extraordinary" and "compelling." Rather than imposing any bright-line limits on courts' discretion to consider or weigh information, these terms invite open-ended, fact- and context-specific inquiries into the totality of the circumstances in individual cases to determine whether they rise to an unusual level. In other words, whether a given set of reasons is "extraordinary and compelling" as applied to a particular defendant's case is a question of degree, not of kind.

This Court's cases interpreting similarly broad terms across different contexts support this understanding. This Court has opined that it is "impossible to anticipate and define every situation that might" qualify as involving "extraordinary circumstances" that warrant federal interference with an ongoing state criminal prosecution. *Kugler* v. *Helfant*, 421 U. S. 117, 124–125 (1975). It has also "struggle[d] in vain for any verbal formula that will supply a ready touchstone" for distinguishing between "ordinary" and "extraordinary" business expenses. *Welch* v. *Helvering*, 290 U. S. 111, 114–115 (1933).

Page Proof Pending Publication

Given the difficulty in defining with precision what makes something "unusual," this Court has held, in the sentencing context, that such determinations fall within district courts' discretion. In *Koon* v. *United States*, 518 U. S. 81 (1996), the Court noted that a district court's finding that a factor at sentencing was "unusual or exceptional," such that a departure from the then-binding Sentencing Guidelines was warranted, "embodies the traditional exercise of discretion by a sentencing court." *Id.*, at 98. That was because such a judgment reflected the district court's "'special competence'" in evaluating "'the fact-specific circumstances of the case'" that set it apart from others. *Id.*, at 99. Similarly, when identifying cases that are "'exceptional,'" the Court has explained that the inquiry must be carried out by "[d]istrict courts . . . in the case-by-case exercise of their discre-

tion, considering the totality of the circumstances," as "'[t]here is no precise rule or formula for making these determinations.'" *Octane Fitness, LLC* v. *ICON Health & Fitness, Inc.*, 572 U. S. 545, 554 (2014).

The Commission's policy statement fits comfortably within these capacious parameters. To start, the Commission requires courts to take "full consideration of the defendant's individualized circumstances." USSG §1B1.13(b)(6). Individuals also must meet three other discrete criteria, including that they are serving an "unusually long" sentence and are facing a "gross" (*i. e.*, unusually large) sentencing disparity. *Ibid.* Even if all those criteria are met, the Commission's policy statement does not require courts to grant relief. A court can grant relief only if it concludes that there are extraordinary and compelling reasons after taking in all relevant information about a defendant's specific circumstances. *Ibid.*

Page Proof Pending Publication

The majority's chief rejoinder is that nonretroactive changes in law are "the norm." *Ante*, at 466–467. True, but so too are many of the other developments that the majority agrees may support compassionate release. Everyone ages. Everyone falls ill. Everyone loses family members and loved ones. These realities are, unfortunately, also "the norm." Yet all agree that courts may properly consider a defendant's age, physical health, and family circumstances when determining whether to grant compassionate release. See *ante*, at 10. That concession reflects the basic reality that facts which are ordinary in isolation can nonetheless combine to form an extraordinary whole. Accordingly, the key question is not whether any one reason for granting relief is extraordinary or compelling on its own or in the abstract, but whether a defendant's circumstances, taken together, are so extraordinary and compelling as to warrant reducing his sentence. Because answering that question calls for a full assessment of the totality of the circumstances and all relevant information, the words "extraordinary and

compelling" do not themselves bar district courts from ever considering nonretroactive changes in law.

Statistics also undercut the majority's suggestion that the Commission's policy statement permits relief in ordinary cases. Almost no one has received relief under the Commission's criteria. There are currently over 130,000 individuals serving sentences for federal convictions. United States Sentencing Commission, QuickFacts: Individuals in the Federal Bureau of Prisons (May 2025), https://www.ussc.gov/sites/default/files/pdf/research-and-publications/quick-facts/BOP_2025.pdf (archived at https://perma.cc/K2QS-JCR5). In Fiscal Year 2024, defendants moved for compassionate release 3,015 times nationwide. United States Sentencing Commission, Compassionate Release Data Report, FY 2024, Table 2 (Mar. 2025), https://www.ussc.gov/sites/default/files/pdf/research-and-publications/federal-sentencing-statistics/compassionate-release/FY24-Compassionate-Release.pdf (archived at https://perma.cc/FQE2-W57L). District courts granted relief under § 1B1.13(b)(6) for sentencing disparities caused by any change in law (not just the changes to 18 U. S. C. § 924(c)) just 98 times. Compassionate Release Data Report, Table 10. That small number suggests that § 1B1.13(b)(6) has not opened the floodgates to sentence reductions in unexceptional cases.

Page Proof Pending Publication

B

Longstanding tradition, which Congress has not disturbed, also supports the Commission's policy statement.

For centuries, courts have enjoyed "broad discretion to consider all relevant information at an initial sentencing hearing, consistent with their responsibility to sentence the whole person before them." *Concepcion* v. *United States*, 597 U. S. 481, 491 (2022). "That discretion also carries forward to later proceedings that may modify an original sentence." *Ibid.* At these proceedings, district courts can modify initial sentences for a variety of reasons, including

following a reversal on appeal or a retroactive change in law. They may also consider whatever evidence they find germane, including "intervening changes of law (such as changes to the Sentencing Guidelines)" when deciding whether to reduce a sentence. *Id.*, at 486. Indeed, courts may even consider nonretroactive changes to the Sentencing Guidelines. *Id.*, at 499–500.

In light of this centuries-old tradition, if Congress wishes to restrict what courts may consider at sentence-modification proceedings, it must say so expressly. "The only limitations on a court's discretion to consider any relevant materials at an initial sentencing or in modifying that sentence are those set forth by Congress in a statute or by the Constitution." *Id.*, at 494. (All agree that the Constitution does not expressly bar consideration of nonretroactive changes in law.) When Congress is silent, this Court infers that Congress did not intend to limit sentencing courts' discretion because "Congress is not shy about placing such limits where it deems them appropriate" and has "'shown that it knows how to direct sentencing practices in express terms.'" *Id.*, at 494, 497 (quoting *Kimbrough* v. *United States*, 552 U. S. 85, 103 (2007)).

Page Proof Pending Publication

A compassionate-release proceeding, in which a court decides whether to reduce a defendant's sentence (and if so, by how much), is obviously a sentence-modification proceeding. Changes in law are also plainly relevant to a court's determination: The fact that a defendant would be eligible for a significantly lower sentence for the same conduct today due to a change in law undoubtedly could inform a court's decision as to whether it should reduce his sentence. Allowing courts to consider this information, then, is consistent with courts' traditional discretion.

Congress's words here do not limit courts' discretion as to what they may consider. As explained, the words "extraordinary and compelling" do not foreclose the approach the Commission adopted in §1B1.13(b)(6). Congress's delega-

tion to the Commission, moreover, contained just one express restriction: "Rehabilitation of the defendant alone shall not be considered an extraordinary and compelling reason." 28 U. S. C. § 994(t). That restriction, however, does not bar courts from considering rehabilitation in conjunction with other facts and evidence. Nor does it bar the Commission from allowing courts to consider evidence of rehabilitation alongside other facts, as the Commission has done. See USSG § 1B1.13(d). That specific restriction thus poses no limit on what evidence courts may consider, and in fact confirms that Congress knows how to limit compassionate-release practices explicitly when it wants to.

The majority tries to downplay Congress's treatment of rehabilitation by analogizing to a conversation with a dietitian. *Ante*, at 468–469. An instruction from a dietitian not to eat pasta alone, the majority says, is not a "license" to eat unhealthy food, so Congress's express limit on rehabilitation, the majority reasons, "did not impliedly bless all other considerations" either. *Ante*, at 469. This analogy misses the mark. Unlike a judge who enters a sentence-modification proceeding assuming she may consult all relevant information not expressly excluded by law, see *Kimbrough*, 552 U. S., at 103, one does not go into a conversation with a dietitian under the assumption that all foods not expressly prohibited are on the table. Those concerned enough about their diets to seek professional help likely do not need to be expressly told that they should avoid "[f]ried chicken." *Ibid.*

Congress's instructions to the Commission are much the same. An instruction not to grant compassionate release based on rehabilitation alone is not a prohibition against considering any other type of evidence. Instead, courts may consider all relevant information, as they have always done, see *Concepcion*, 597 U. S., at 491–492, and the Commission may authorize them to do so, as it did here.

Preliminary Print

IV

The majority disagrees with the Commission's judgment, forgetting that this Court "is not free to set aside" the Commission's policy statement "simply because it would have interpreted the statute in a different manner," *Batterton*, 432 U. S., at 425. The majority also plumbs history and the First Step Act, searching for limits it cannot find in the compassionate-release statute itself. The majority comes up empty handed.

A

First, the majority argues that considering nonretroactive changes in law was, "[u]ntil very recently," unprecedented. *Ante*, at 467. Far from it. Again, courts have for centuries considered all relevant evidence at sentence-modification proceedings, and sentencing disparities like those created by nonretroactive changes in law are relevant information. See *Concepcion*, 597 U. S., at 490–492; Part III–B, *supra*.

Page Proof Pending Publication

The majority offers a counter-tradition, claiming that the "the heartland of compassionate release" "has long been defined by a prisoner's personal circumstances," such as his physical health. *Ante*, at 466. It is certainly true that personal circumstances feature prominently in compassionate-release proceedings. Even so, nothing in the statute's text confines courts to considering only personal circumstances, and "[t]he only limitations on a court's discretion to consider any relevant materials" in a sentence-modification proceeding "are those set forth by Congress in a statute or by the Constitution." *Concepcion*, 597 U. S., at 494. Without an express limitation, the default remains: Courts may consider facts beyond personal circumstances when deciding whether to modify a defendant's sentence.

Nor does historical practice supply a personal-circumstances limit. The parties have identified only two published opinions in which district courts reduced a

sentence under the predecessor to the compassionate-release statute, which was in effect from 1976 to 1984. In one of those two decisions, the District Court reduced a defendant's sentence not based on the personal circumstances of the defendant, but rather because of the disparity between the defendant's sentence and those of his codefendants. See *United States* v. *Diaco*, 457 F. Supp. 371, 372, 376 (NJ 1978); see also *United States* v. *Banks*, 428 F. Supp. 1088, 1089–1090 (ED Mich. 1977) (granting relief under predecessor statute "upon careful review of the prisoner's record," including evidence of rehabilitation).

Further, this Court has also acknowledged that, apart from a defendant's personal circumstances, compassionate release might be appropriate to reduce a sentence to account for later legal developments. In fact, in *Setser* v. *United States*, 566 U. S. 231 (2012), the Court addressed whether federal courts have authority to order federal sentences to run consecutively to anticipated state sentences that have not yet been imposed. *Id.*, at 233. After holding such sentences to be permissible, Justice Scalia explained that, when unexpected sentencing developments in state court "produc[e] unfairness to the defendant," the Sentencing Reform Act "provides a mechanism for relief": compassionate release under § 3582(c)(1)(A). *Id.*, at 242–243. These examples confirm that courts have historically considered postsentencing legal developments beyond a defendant's personal circumstances.[2]

Page Proof Pending Publication

B

Without a foothold in the compassionate-release statute or its history, the majority looks for one in the First Step Act instead. According to the majority, Congress's decision

[2] The majority points out that these examples "do not involve nonretroactive sentencing amendments." *Ante*, at 467, n. 6. True, but the point is that these past examples undercut any argument that historical practice confined "extraordinary and compelling" reasons to those involving a defendant's personal circumstances.

not to make its changes to § 924(c) retroactive means that it intended to preclude consideration of those changes in all cases as part of an individualized compassionate-release determination. That argument badly overreads the First Step Act.

To start, Congress's decision not to make its changes retroactive simply means that Congress did not intend for every person who committed § 924(c) offenses prior to the First Step Act's passage to be automatically eligible for relief. See *ante*, at 471 ("True, Congress chose not to reduce § 924(c) penalties on a *categorical* basis"). By making that one choice, however, Congress did not also decide that sentencing disparities created by those changes should never be considered in deciding compassionate-release motions. Indeed, Congress amended the compassionate-release statute in the First Step Act as well, so Congress easily could have specified that its nonretroactive changes should not be considered in compassionate-release determinations, just as it previously limited consideration of rehabilitation. See *Concepcion*, 597 U. S., at 494 ("Congress is not shy about" limiting courts' discretion). Yet Congress did not do so.

Page Proof Pending Publication

The majority would have a point if the Commission instructed courts to grant relief based solely on a nonretroactive change in law; such an approach would amount to granting relief on a categorical basis, which would be in tension with the categorical nonretroactive nature of Congress's amendments here. The Commission's guidance, however, permits consideration of changes in law only when the disparity is "gross," the sentence is "unusually long," and the defendant has served at least 10 years of his sentence. § 1B1.3(b)(6). It also requires courts to give "full consideration of the defendant's individualized circumstances" while weighing any change in law. *Ibid.* That individualized approach is consistent with Congress's judgment that prior § 924(c) offenders are not automatically entitled to relief, and in no way countermands Congress's more general decision

not to make the First Step Act's amendments retroactive for each and every § 924(c) offender.

Take petitioners as examples. Neither is seeking relief based solely on Congress's nonretroactive changes to § 924(c). Instead, they argue that they are entitled to a reduction because of the change in law in addition to their remarkable changed personal circumstances. To be clear, it may well be that neither Rutherford nor Carter would be found by a district court to be entitled to compassionate release even after taking account of sentencing disparities. Nevertheless, they are at least entitled to full consideration of their cases in view of all relevant information. Affording them that individualized analysis is fully consistent with Congress's judgment that a change in law does not automatically entitle them to relief.

Even the Government agrees that individualized analysis is consistent with Congress's intent at least at one step of the compassionate-release analysis. Once a defendant establishes extraordinary and compelling reasons, the Government concedes that courts may consider a sentencing disparity created by nonretroactive changes in law when weighing the § 3553(a) factors to decide how much to reduce a defendant's sentence. See Brief for United States 37; see also 18 U. S. C. § 3553(a)(6) (listing "the need to avoid unwarranted sentence disparities" as one factor the court "shall consider"). The majority maintains that considering sentencing disparities is impermissible at the first step because it is a "distinct analytical step that imposes independent and ascertainable limits on access to compassionate release." *Ante*, at 470.

Page Proof Pending Publication

This attempt at statutory surgery does not cure the problem. For one thing, § 3582(c)(1)(A)(i) does not clearly mandate that the two steps be hermetically sealed off from one another. It specifies only that a court "may reduce [a] term of imprisonment . . . , after considering the factors set forth

in section 3553(a) to the extent that they are applicable, if it finds that . . . extraordinary and compelling reasons warrant such a reduction." §3582(c)(1)(A)(i). This text in no way dictates the majority's precise, two-step sequencing in which courts undertake two different inquiries while feigning ignorance of the other. That text just as easily means that courts should decide if there are extraordinary and compelling reasons for relief "after considering" the §3553(a) factors. Indeed, it is obvious, and conceded, that at least some of the §3553(a) factors are salient at both stages. For instance, one of the §3553(a) factors is "the history and characteristics of the defendant," §3553(a)(1), which includes the defendant's personal circumstances. If courts can consider personal circumstances at both steps of the analysis, see *ante*, at 466 (describing "personal circumstances" as "the heartland of compassionate release"), it is not clear why they cannot also consider sentencing disparities at both steps as well.

Page Proof Pending Publication

In any event, even assuming Congress intended to impose a rigid, two-step process, it is hard to "see how a court may be thought to subvert congressional intent by considering nonretroactive changes to the law at the 'extraordinary and compelling' stage of the analysis but not while weighing the §3553(a) factors." *United States* v. *Ruvalcaba*, 26 F. 4th 14, 32 (CA1 2022) (Barron, J., concurring). "[I]f Congress truly intended to bar district courts from considering [the First Step Act's] changes to mandatory minimums in the compassionate release context by making the changes nonretroactive, then it is doubtful those changes should be considered at all." *United States* v. *Chen*, 48 F. 4th 1092, 1099 (CA9 2022). It also remains that, no matter how the Court may try to slice it, a compassionate-release proceeding is a "sentence-modification proceeding," and courts have long enjoyed broad discretion to consider relevant information in such proceedings unless Congress expressly says otherwise.

Concepcion, 597 U. S., at 491. Nothing in the First Step Act specifically addresses what courts may consider when deciding whether a defendant is eligible for a sentence reduction.

In the end, the majority is unable to explain why exactly the Commission's case-by-case approach is inconsistent with Congress's categorical nonretroactivity decision. See *ante*, at 471–472. After acknowledging that it is "[t]rue" that Congress merely made a judgment about categorical retroactivity, the majority takes aim at something different altogether: mandatory minimums. See *ibid.* In the majority's view, permitting holistic consideration of all relevant evidence, including changes in law, would also permit judges to grant relief based on their personal view that a mandatory-minimum sentence is too harsh. *Ibid.*

Those fears are unfounded. A judge's policy disagreement with a statutory mandatory minimum is not, and has never been, a relevant consideration at sentencing. Although district courts may disagree with the nonbinding Sentencing Guidelines "'based solely on policy considerations,'" they are "constrained by the mandatory minimums Congress prescribed" by statute regardless of their policy views. *Kimbrough*, 552 U. S., at 101, 108; see *United States* v. *Fanfan*, 558 F. 3d 105, 110, n. 6 (CA1 2009) ("Though district courts may sentence based on policy disagreements with the . . . guidelines, they may not do so on the basis of disagreements with statutes"); see also § 3553(e) (providing "[l]imited authority" for a court to "impose a sentence below a statutory minimum"); § 3553(f) (permitting district courts to disregard a mandatory minimum for certain offenses only if five criteria are met).

Case Not Pending Publication

Reflecting that norm, § 3553(a) does not permit judges to consider their own personal policy preferences when imposing an initial sentence or reducing a sentence through a compassionate-release motion. Nor does it allow judges to weigh whether they think that Congress mandated the right punishment for a given crime. It does, however, instruct

judges to consider sentencing disparities, § 3553(a)(6), including those created by nonretroactive changes in law. That instruction is perfectly consistent with courts' longstanding discretion to consider all relevant information, including changes in law, when resentencing a defendant. See *Concepcion*, 597 U. S., at 491–492.

In addition, no evidence supports the specter that the majority invokes. District judges around the country routinely impose mandatory-minimum sentences in tens of thousands of cases every year, as it is their oath-bound duty to apply the laws of the United States. See 28 U. S. C. § 453. There is no evidence that these same district judges are routinely granting compassionate release as an end run around mandatory minimums. In Fiscal Year 2024, the Commission received information regarding 61,678 cases in which a criminal defendant was sentenced. United States Sentencing Commission, QuickFacts on Mandatory Minimums 1 (2024), https://www.ussc.gov/sites/default/files/pdf/research-and-publications/quick-facts/Quick_Facts_Mand_Mins_FY24.pdf (archived at https://perma.cc/5Q4L-9G3Z). Of all individuals sentenced that year, 15.9% faced a mandatory minimum at sentencing. That same year, judges granted compassionate release just 481 times in total on any ground (including under § 1B1.13(b)(6)) and denied it 2,534 times. Compassionate Release Report, Table 20. Compassionate release is not the loophole to mandatory minimums that the majority fears.

Page Proof Pending Publication

Even if a district court were to start using compassionate release as an opportunity to usurp Congress's role and elevate its own policy preferences, the Government could appeal those outlier grants of compassionate release to the courts of appeals and, if necessary, to this Court. If a systemic solution were necessary, the Commission could issue another policy statement or Congress could enact legislation to prevent misuse of the compassionate-release statute. The solution is not, however, for this Court to conjure cate-

gorical limitations on courts' discretion that neither Congress nor the Commission imposed.

* * *

The majority is right on one point: The extraordinary-and-compelling analysis is indeed subject to "independent and ascertainable limits." *Ante*, at 470. Yet one need only read the Commission's policy statement to determine those limits. The majority nevertheless searches high and low for other statutory limits on what courts may consider when deciding compassionate-release motions. Because the Commission's narrow, limited guidance is consistent with what Congress has previously said and with what courts have previously done, I respectfully dissent.

Page Proof Pending Publication